

**CHAPTER clix.**

An Act to confer further powers upon the mayor aldermen and burgesses of the borough of Ossett with respect to the disposal of trade refuse and to make further provision in regard to the water and gas undertakings of the Corporation and the health local government and improvement of the borough and for other purposes. A.D. 1914
—

[7th August 1914.]

WHEREAS the borough of Ossett in the West Riding of the county of York is a municipal borough under the management and local government of the mayor aldermen and burgesses of the borough of Ossett (in this Act called "the Corporation"):

And whereas it is expedient that better provision should be made (as in this Act provided) with regard to the removal and disposal of trade refuse proceeding from mills factories and trade premises within the borough by means of the sewers of the Corporation and for regulating and defining the respective rights of the Corporation and the owners and occupiers of such mills factories and trade premises in reference thereto:

And whereas the Corporation are the owners of a waterworks undertaking whereby their borough is supplied with water and it is expedient to make further provision with regard to that undertaking:

And whereas in pursuance of powers conferred upon them by the Ossett Corporation Gas Act 1900 the Corporation acquired the undertaking of the Ossett Gas Company and were empowered to supply gas within the borough of Ossett and certain places adjacent thereto and it is expedient to make further provision in regard to the gas undertaking of the Corporation:

A.D. 1914.
—

And whereas it is expedient to make further and better provision with regard to the streets and buildings in the borough and that the powers of the Corporation in regard to the health local government and improvement of the borough be enlarged as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the *Ossett Corporation Act 1914.*

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Trade Refuse.

Part III.—Water Supply.

Part IV.—Gas Supply.

Part V.—Streets Buildings Sewers Drains &c.

Part VI.—Infectious Disease and Sanitary Provisions.

Part VII.—Financial and Rating Provisions.

Part VIII.—Miscellaneous Provisions.

Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context

repugnant to such construction And in this Act unless the subject or context otherwise requires— A.D. 1914.

“The Corporation” means the mayor aldermen and burgesses of the borough of Ossett;

“The borough” means the borough of Ossett;

“The council” means the council of the borough;

“The town clerk” “the treasurer” “the surveyor” “the medical officer” and “the inspector of nuisances” mean respectively the town clerk the treasurer the surveyor the medical officer of health and the inspector of nuisances of the borough and respectively include any person duly authorised to discharge temporarily or permanently the duties of those offices;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;

“Trade refuse” means any liquid either with or without particles of matter in suspension or solution therein which proceeds or results from or has been used in or in connexion with any industry or trade within the borough;

“Sewer” means a sewer of the Corporation;

“Trader” means an owner or occupier of trade premises as defined by this Act or any person carrying on any business thereon or on any part thereof and discharging trade refuse therefrom and shall include a company corporation or firm owning or occupying any such trade premises or carrying on any such business;

“Trade premises” means any mill factory or premises situate within the borough from which any trade refuse shall for the time being be directly or indirectly discharged into the sewers of the Corporation or in respect of which notice of intention so to discharge shall have been given to the Corporation;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 and any Act amending the same applies for the time being within the borough;

A.D. 1914.

“Daily penalty” means a penalty for each day on which an offence is continued by a person after conviction therefor;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any provisional order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation;

“The Act of 1875” and “the Act of 1900” mean respectively the Ossett-cum-Gawthorpe Local Board Act 1875 and the Ossett Corporation Gas Act 1900.

PART II.

TRADE REFUSE.

Powers of
Public
Health Act
to apply.

4. The Corporation shall for the purposes and subject to the provisions of this Part of this Act have the like powers and duties with respect to the construction and maintenance of sewers and the removal treatment and disposal of trade refuse

and the purchase and taking of lands by agreement or otherwise than by agreement and the borrowing and expenditure of money and execution of works as they have for the construction and maintenance of sewers and the removal and disposal of sewage under the Public Health Act 1875 and all the provisions of that Act and of any Act incorporated therewith so far as applicable and not inconsistent with this Part of this Act shall apply accordingly. A.D. 1914.
—

5.—(1) Subject to the provisions of this Part of this Act any trader may require the Corporation to receive and dispose of the trade refuse produced on his trade premises and shall be entitled to discharge or continue to discharge such trade refuse through any drains communicating with a sewer and for such purpose shall be entitled subject to the delivery to the Corporation of plans and sections thereof and to the approval of the Corporation of the same to enlarge or alter such drains or construct new drains and cause the same to empty into such sewers subject nevertheless to the provisions of section 21 of the Public Health Act 1875. Traders may
discharge
trade refuse
into sewers.

(2) Any trader requiring the Corporation to receive and dispose of any trade refuse from his trade premises as aforesaid or intending to discharge trade refuse into a sewer by any drain not used for such purpose at the date of the passing of this Act or proposing to enlarge or alter any drain used for the purpose of discharging any trade refuse into any sewer shall at least one month before so requiring or commencing to discharge enlarge or alter any such drain serve the Corporation with notice of his requirement or intention or proposal as aforesaid and stating the branch of industry or trade carried on by him on the trade premises affected thereby and whether he occupies such premises or any part thereof as owner or tenant and in the latter case shall state the name and postal address of the owner.

(3) The provisions of this section shall not come into force until the expiration of twelve months after the passing of this Act or until the general regulations to be made as herein-after provided shall come into operation whichever shall first happen Provided that in the meantime the existing rights of the Corporation and the traders respectively shall remain unaffected.

6. The owner and occupier of any lands on in through or under which any sewer drain pipe channel or outlet is situate by means whereof any trade refuse flows or is or may be discharged into any sewer or the Corporation as the case may be Production
of plans.

A.D. 1914. shall upon application in writing by the other of them requiring the same produce for inspection by such owner or occupier or corporation as the case may be or his or their officers or agents all such plans of such sewer drain pipe channel or outlet as he or they possess and if required shall furnish to him or them at reasonable charges copies of all such plans and shall also give all such information as he or they are able to afford and in case of default shall be liable for every such offence to a penalty not exceeding five pounds and to a further penalty not exceeding forty shillings for every day during which such default shall continue.

Power to make separate or combined systems or schemes.

7. The Corporation may construct or provide any separate sewers or other works for receiving and disposing of any trade refuse as aforesaid or by means of a combined scheme or schemes with all necessary sewers and works may receive and dispose of the trade refuse from two or more trade premises as aforesaid apart or separately from the general sewerage system or disposal works of the Corporation.

Power to combine with other local authorities.

8. The Corporation may combine with the local authority of any other district for the purpose of the exercise and performance of the powers and duties of the Corporation under this Part of this Act and may enter into and carry into effect any agreements for such purpose.

Disposal of sludge or deposit.

9. The Corporation may at the request and cost of any trader or other person for the time being interested in any trade premises remove and dispose of any sludge or deposit or other substance which may have been produced in the course of the treatment of trade refuse upon or in connexion with such trade premises.

Corporation may make general regulations.

10.—(1) The Corporation may subject as herein-after in this Part of this Act mentioned make general regulations which shall be conformed to by the traders who at the passing of this Act discharge or shall thereafter discharge trade refuse into the sewers of the Corporation.

(2) Such general regulations shall provide for (inter alia) the following operations by and at the cost of the trader:—

(A) The exclusion where practicable from trade refuse discharged from his trade premises into any sewer of all surface and condensing water springs of water and the overflow from reservoirs of such water Provided

that nothing contained in the provisions of this subsection shall be deemed or construed to entitle any trader or the Corporation to cause to fall or flow or knowingly permit to fall or flow or to be carried into any river or stream any liquid which is poisonous noxious or polluting within the meaning of the Rivers Pollution Prevention Act 1876:

(B) The removal (where the same can be effected at a reasonable cost) from trade refuse discharged from his trade premises into any sewer of grease and all or any particular kind of solid or suspended matter or matters in solution:

(c) The regulation (where the same can be effected at a reasonable cost) by the trader of the volume of flow of trade refuse discharged from his trade premises into any sewer so as to ensure an uniform rate of discharge thereof into the sewers during the working hours of each working day (including overtime) for the time being obtaining at such premises.

(3) Such general regulations shall also make satisfactory provision for the inspection of trade effluents and taking of samples by the Corporation.

(4) Such general regulations shall also provide in any case for the payment by the trader to the Corporation either by means of fixed charges per thousand gallons or otherwise in respect of the reception and disposal by the Corporation of his trade refuse (either with or without exclusion removal and regulation as aforesaid or any one or more of such processes) discharged into a sewer and shall prescribe the method to be adopted for ascertaining the quantity and flow of the same.

(5) Such general regulations and charges shall subject as herein-after in this Part of this Act provided be settled by agreement between the Corporation and a majority of the trader's representatives duly appointed at a general meeting of traders held for that purpose as herein-after provided or failing such agreement in manner provided by the section of this Act the marginal note whereof is "Reference of questions in dispute."

(6) Such general regulations shall be settled with due regard to the circumstances connected with the respective branches of industry or trade in the borough so as to ensure that no unnecessary injury will be inflicted by such regulations on the

A.D. 1914. — interests of such industries or trades and shall make all reasonable distinctions between such respective branches of industry or trade.

(7) After such general regulations shall have been settled in pursuance of the provisions of subsection (5) of this section the Corporation shall serve a copy of the said general regulations on the traders who shall be affected thereby.

(8) Such general regulations shall come into operation in the case of traders who are at the time of the settlement thereof under the said subsection (5) discharging trade refuse from their trade premises into the sewers not less than two months after copies thereof have been served upon such traders in pursuance of the last preceding subsection of this section and in the case of other traders one month after receipt by the Corporation of notice under the provisions of the section of this Act of which the marginal note is "Traders may discharge trade refuse into sewers."

(9) A meeting of the traders for the purpose of this section shall be summoned by not less than seven clear days' notice by advertisement in a newspaper circulating in the borough and such meeting shall be convened by the mayor or town clerk for the time being of the Corporation and shall be held within three months from the passing of this Act. Such meeting shall elect traders' representatives not exceeding nine in number and shall act by a majority of the traders present and in the event of such representatives not being appointed at such meeting the said regulations shall be settled by the Corporation alone. A certificate of the chairman of the meeting at which such representatives are appointed stating the names of the traders' representatives shall be conclusive evidence of their appointment.

(10) A list of traders who shall have been served with any general regulations under this section shall within fourteen days from such service and also a print or a copy of any general regulations for the time being in force shall within fourteen days after the same come into operation be filed and kept by the Corporation at the town hall and such list shall be classified in the respective branches of industry or trade carried on within the borough so far as reasonably practicable and shall in each case state the name of the trader the situation of and nature of trade carried on at the trade premises of such trader and whether such trader is interested therein as owner or occupier and any trader shall be entitled at all reasonable times during

office hours at the town hall to inspection of any such list or regulations on payment of a fee of one shilling for each such inspection and shall be at liberty to take copies thereof at his own expense and to be furnished with copies by the Corporation certified to be correct by an official of the Corporation on payment for the same at the rate of fourpence per folio of seventy-two words and any such certified copy may be received as evidence in all legal proceedings. A.D. 1914.

11. Either the Corporation or any trader affected may from time to time serve on the other of them two months' notice of their or his desire to modify vary or rescind any regulations which may be deemed to have become unnecessary or undesirable so far as such trader is concerned and substitute further or other regulations but such modification variation rescission or substitution shall be settled with due regard to all and every the matters mentioned or referred to in the section of this Act the marginal note of which is "Corporation may make general regulations" and shall be settled in manner provided by the section of this Act the marginal note whereof is "Reference of questions in dispute." Right to call for modification of regulations.

12. Until Parliament otherwise provides any question arising under this Part of this Act shall be referred to the Local Government Board (for determination otherwise than as arbitrator) and thereupon that Board may make such order in the matter and as to the costs of the reference and of all parties as to the Board may seem equitable and the order so made shall be binding and conclusive on all parties. Reference of questions in dispute.

13. Any trader who shall discharge any trade refuse into any sewer in the borough except in accordance with the provisions of this Part of this Act or of any regulation for the time being in force thereunder or who shall otherwise infringe such provisions or regulations shall be liable on the application of the Corporation to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds. Penalty for default.

14. The production of a written copy of any regulations with respect to the disposal of trade refuse made in pursuance of this Act if authenticated by the seal of the Corporation shall until the contrary is proved be sufficient evidence of the due making settlement and existence of such regulations. Evidence of regulations.

15. Any person duly appointed for the purpose by the Corporation and exhibiting his appointment if required so to do Power to enter and inspect.

A.D. 1914. — may at all reasonable hours of the day or night enter any trade premises for the purpose of ascertaining whether any trade refuse or effluent is being discharged into a sewer the volume of the same the capacity of the drains pipes or sewers to carry the same and the nature of the trade refuse or effluent so being discharged and if such person at any such time be refused admittance into such premises for the purposes aforesaid or be prevented from making such examination the occupier of such premises shall for every such offence be liable to a penalty not exceeding forty shillings.

Reservation
of rights of
riparian
owners.

16. Nothing in this Part of this Act shall prejudice or affect the rights of any riparian owner or justify any infringement of such rights Provided that if pursuant to this Part of this Act any trade refuse is received into the sewers in contravention of any such riparian rights the remedy for such contravention shall be against the trader and not against the Corporation.

Agreements
for recep-
tion and
disposal of
trade refuse.

17. Subject to the provisions of this Part of this Act the Corporation may enter into agreements with the owners lessees or occupiers of any trade premises within the borough as to the terms and conditions upon which they will receive and dispose of any trade refuse produced on such premises including the construction of all sewers or works whether for preliminary treatment or otherwise required therefor and the repayment of any expenses which they may incur in respect of the construction of sewers or works or on account or in respect of such reception and disposal but any such agreement made after the date of the passing of this Act shall be filed at the town hall with any regulations affecting trade premises in the same branch of industry or trade and be subject to the like rights of inspection as such regulations.

Corporation
may execute
works and
make
advances.

18.—(1) When under this Part of this Act it shall become necessary for any trader to execute works for the purpose of enabling him to comply with any regulations for the time being applicable to one or more trade premises as to preliminary treatment or otherwise for the purpose of this Part of this Act by such trader of the trade refuse proceeding from such trade premises such trader may either execute such works or the Corporation may if they think fit execute such works at the request and cost of such trader and the Corporation may if they think fit advance to the trader the cost of such works upon such

security terms and conditions as may be agreed between such trader and the Corporation. A.D. 1914.

(2) If the occupier of any trade premises shall not be the owner thereof or if more than one person shall be interested therein either as owner or occupier or if the said works relate to more than one trade premises the amount payable shall be apportioned between the interests or trade premises (as the case may be) affected in such manner and upon such terms as may be agreed between the parties interested or failing agreement in manner provided by the section of this Act the marginal note whereof is "Reference of questions in dispute."

19. In the assessment of the annual value of trade premises for rating purposes any expenditure under this Part of this Act required to be incurred by the trader to enable such trade premises to fulfil the requirements of any regulations for the time being in force with respect to such premises shall be deemed to be included in the words "other expenses" in the interpretation of the words "net annual value." Expenditure in relation to assessment of trade premises.

20. Where at the passing of this Act the trade refuse from any trade premises is already received into the sewers or works of or disposed of by the Corporation such owner lessee or occupier shall be deemed as at the passing of this Act and for the purposes thereof to have required the Corporation to receive and dispose of such trade refuse subject in all respects to the provisions of this Act. Existing arrangements for disposal of trade refuse.

21. Nothing in this Part of this Act contained shall entitle any trader to require the Corporation to receive or dispose of— Prohibiting discharge of certain liquids &c. into sewers.

(A) Any liquids which prejudicially affect the sewers :

(B) Any waste steam condensing water heated water or other liquid (such water or other liquid being of a higher temperature than 110 degrees Fahrenheit) which either alone or in combination with the sewage would cause a nuisance or be dangerous or injurious to health :

(c) Any water grease or matter which by regulations made under the provisions of this Act shall be required to be excluded or removed from trade refuse or to discharge or continue to discharge the same through any drain communicating with a sewer.

22. Any sum of money other than a penalty due to the Corporation accruing under this Part of this Act may be recovered by the Corporation summarily as a civil debt and the Recovery summarily of any sum of money accruing under

A.D. 1914. remedy of the Corporation under this enactment shall be in
this Part of addition to any other remedy of the Corporation for the recovery
this Act. of any such sum of money.

PART III.

WATER SUPPLY.

Application
of provisions
of Public
Health Acts
as to laying
of water
mains.

23. The Corporation shall have and may exercise within the borough and also in along or under so much of the Wakefield to Dewsbury main road as lies within the county borough of Dewsbury and runs adjacent to the Ossett borough boundary the powers which a local authority would have under section 54 of the Public Health Act 1875 with respect to the carrying of water mains within and without their district.

Power to lay
water pipes
in private
streets.

24. The Corporation may on the application of the owner or occupier of any premises within their limits for the supply of water abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if section 29 of that Act were excepted from incorporation with the Act of 1875.

Power to
repair com-
munication
pipes.

25. If it should appear to the Corporation that by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Corporation to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Corporation in executing such repairs shall be recoverable by the Corporation from the owner of the premises supplied or in cases where the communication pipe has been laid by and belongs to the occupier of such premises from the occupier:

Provided that except in case of emergency the Corporation shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

Maintenance
of common
pipe.

26. When several houses or parts of houses in the occupation of several persons are supplied by one common pipe belonging to the several owners or occupiers of such houses or

parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer of the Corporation. A.D. 1914.

27.—(1) The Corporation shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit by notice to the owner require that a separate pipe be laid from the main pipe into each house supplied by them with water. Provided that in cases where the Corporation have themselves laid down the communication pipes under the powers conferred upon them by section 25 (Power to Local Board to compel owners &c. to take water supply) of the Act of 1875 the provisions of this section shall not apply. Separate pipes for supply to several houses.

(2) The owner of any house supplied with water by the Corporation who when so required fails within a period of one month after such notice to provide a separate pipe from the main pipe into such house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

28. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation or be given by the consumer personally at the office of the Corporation. Notice of discontinuance of supply.

29.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 the Corporation may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Corporation and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose temporarily stop break up and interfere with public and private streets roads lanes footways sewers courts passages tramways gas or water pipes electric lines wires and apparatus. Detection of waste.

(2) Provided that the Corporation shall not enter upon break up or interfere with the works electric lines or apparatus of a railway company except with their consent in writing and under the supervision of the engineer of the said railway company and the Corporation shall where necessary provide reasonable

A.D. 1914. means of access for persons bonâ fide going to or coming from the houses or stations or other premises of any railway company in any streets so stopped up.

(3) Provided also that the Corporation shall not interfere with any electric lines wires or apparatus belonging to or used by the Postmaster-General except under and subject to the provisions of the Telegraph Act 1878.

Water rate
in respect of
property
rated at
eight pounds
or under to
be paid by
owner.

30.—(1) It shall be lawful for the Corporation if they think fit to charge the owner or owners of property of which the rateable value does not exceed the sum of eight pounds or which is let to weekly or monthly tenants or in separate apartments or for which the rent becomes payable or is collected at any shorter period than quarterly instead of charging the occupier or occupiers of such property and every such owner so charged shall pay such water rates and charges instead of the occupier but in every such case the Corporation shall make to such owner any allowance they think reasonable not exceeding ten pounds per centum by way of compensation Provided that the owner shall in such case be bound to pay the water rates and charges whether the premises are occupied or not Provided also that the Corporation shall not be bound to make any allowance as provided by this section where the amount due in respect of water rates and charges are not paid within the time prescribed by the Corporation such time to be endorsed upon every demand note in respect of such water rates and charges.

(2) Section 34 (Abatement to owners paying water rents for occupiers) of the Act of 1875 is hereby repealed.

Supply to
houses partly
used for
trade.

31.—(1) The Corporation shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

(2) Where a supply of water to a farmhouse is used for farming purposes the Corporation may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Corporation to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof.

Price of
supply by
measure.

32. The price to be charged for a supply of water by measure shall not exceed one shilling and twopence per thousand gallons.

33. When water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in stables or premises where horses carriages or motor cars are kept the Corporation may if a hose pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates are recoverable.

A.D. 1914.

Supply of water by hose pipe to stables.

34. The Corporation may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Power to sell meters and fittings.

35.—(1) Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs to meters belonging to such person and the connecting and disconnecting of such meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Connecting and disconnecting of meters.

(2) Section 35 (Notice respecting meter or water pipes) of the Act of 1875 is hereby repealed.

36.—(1) The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Corporation in providing such materials and executing such work shall be paid by the person requiring the same.

Power to supply fittings.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon

A.D. 1914. sufficiently indicating the Corporation as the actual owners thereof:

Provided as follows:—

- (A) The Corporation shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connexion therewith (including interest upon any moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):
- (B) Every sum charged by the Corporation in respect of provision of such fittings or repairing the fixing or removal thereof shall be clearly stated in every demand note delivered by the Corporation to the consumer:
- (c) The total sums expended and received by the Corporation in connexion with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the water undertaking of the Corporation for such year.

Power to
remove
meters and
fittings.

37. The Corporation by their agents or workmen after forty-eight hours' notice in writing under the hand of the town clerk or some other officer of the Corporation to the occupier or if there is no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the Corporation is laid or fixed and through or in which the supply of water is from any cause other than the default of the Corporation discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal.

Dwelling-
houses for
persons
employed.

38. The Corporation may purchase or take on lease dwelling-houses for persons employed by them for the purposes of their water undertaking and may erect and maintain dwelling-houses for such persons upon any lands for the time being belonging to the Corporation for the purposes of the said undertaking and

(subject to the terms of the lease) upon any lands for the time being leased to the Corporation for the purposes of the said undertaking. A.D. 1914.

39. The following provisions for the protection of the county council of the West Riding of Yorkshire (in this section called "the county council") shall have effect with respect to the exercise by the Corporation of their powers under this Part of this Act unless otherwise agreed upon in writing between the county council and the Corporation (that is to say):—

For protection of West Riding County Council.

(A) Before the Corporation construct or lay down any mains pipes or works on over alongside of or near to any county bridge repairable by or at the expense of the county council they shall submit to the surveyor of the county council a plan and section showing the manner in which they propose to construct or lay down such mains pipes or works and the same shall only be laid down or constructed in accordance with such plans and sections as shall have been reasonably approved by the said surveyor:

(B) If the said surveyor has any objection to any plans and sections submitted to him he shall give notice of such objection to the Corporation within fourteen days after the receipt by him of the same and if having regard to the circumstances of the case it is found necessary to construct or lay down the said mains pipes or works independent of such bridge the Corporation shall construct or lay down the same accordingly and in such manner as may be reasonably specified in the said notice Any difference that may arise between the Corporation and the county council as to whether the said surveyor is reasonable in withholding or refusing to give his approval or as to the terms of such approval shall be determined by arbitration as herein-after provided:

(c) If the said surveyor does not give notice of any objection to any plans which may have been submitted to him as aforesaid within fourteen days he shall be deemed to have approved thereof:

(d) Notwithstanding anything in this Act contained it shall be lawful for the county council at any time or times

A.D. 1914.

to remove alter widen or renew any county bridge repairable by or at the expense of the county council or the approaches thereto on over alongside of or near to which any mains pipes or works of the Corporation are constructed laid down or carried in the same manner as they might have removed altered widened or renewed any such bridge or the approaches thereto if this Act had not been passed and such mains pipes or works had not been constructed or laid down on over alongside of or near to such bridge and the county council shall not except in cases of their own negligence or default be liable to make any compensation to the Corporation for any expense or loss to which they may be put in consequence of such diversion widening improvement removal alteration or renewal And in the event of any such bridge or the approaches thereto on over alongside of or near to which such mains pipes or works are constructed laid down or carried being removed altered or renewed as aforesaid the Corporation shall (if and so far as it may be reasonably necessary so to do in order to enable the county council to carry out the work or works aforesaid) at their own expense as and when reasonably required in writing by the county council remove or alter the position of their said mains pipes or works and replace the same in such position as the said surveyor shall reasonably approve Provided that before and during such removal widening alteration or renewal of any such bridge or approaches as aforesaid the county council shall afford at the cost of the Corporation reasonable facilities for temporarily carrying such mains or pipes so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such mains pipes or works :

- (E) Notwithstanding anything in this Act contained if any difference arises between the Corporation and the county council touching this section or anything to be done or not to be done thereunder such difference shall be settled by arbitration by an arbitrator to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers

on the application of either of the parties in difference after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration. A.D. 1914.

PART IV.

GAS SUPPLY.

40. The Corporation may for the purposes of their gas undertaking purchase and take (by agreement but not otherwise) and may hold in addition to the lands now belonging to them any lands and hereditaments not exceeding in the whole five acres which they may require for the purposes of that undertaking but the Corporation shall not create or permit a nuisance on any such lands and no lands shall be used by the Corporation for the purpose of manufacturing gas or residual products except the lands described in the Second Schedule to the Act of 1900. Power to purchase lands by agreement.

41. Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands so far as such provisions are in each case applicable the Corporation may sell lease and dispose of any lands acquired by them in connexion with their gas undertaking and not for the time being required for the purposes thereof. Power to sell lands.

42. The Corporation may purchase or take on lease and maintain houses cottages and buildings for persons in their employment in connexion with their gas undertaking and offices show rooms and other buildings for the purposes of that undertaking and they may also erect maintain and let any such buildings upon any lands for the time being belonging or leased to the Corporation for those purposes. Dwelling-houses for employees and other buildings.

43. For the purpose of supplying gas within their limits for the supply of gas the Corporation shall have along so much of the Wakefield to Dewsbury main road as lies within the county borough of Dewsbury and runs adjacent to the Ossett borough boundary all the like powers and privileges and be subject to all the like duties and penalties in relation to the breaking up and reinstatement of streets and the laying down extension maintenance alterations enlargement renewal and discontinuance of any mains valves syphons and other works Power to lay mains &c. beyond limits of supply.

A.D. 1914. including service pipes which may be necessary or convenient for enabling them to supply gas within their limits for the supply of gas as they would have had or been subject to if so much of the said main road as aforesaid had been included within the said limits.

Power to lay pipes in streets not dedicated to public use.

44. The Corporation may on the application of the owner or occupier of any premises within their limits for the supply of gas abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation with the Act of 1900.

Power to lay down pipes for ancillary purposes.

45. The Corporation may lay down place repair alter remove and renew mains pipes and culverts and other apparatus within their limits for the supply of gas for the purpose of procuring conducting or disposing of any oil or other material used by them in or resulting from the manufacture of gas or any residual products thereof or for any other purpose connected with their gas undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when so laid shall so far as applicable for the purposes of this section extend and apply mutatis mutandis to and for the purposes thereof.

For protection of Wakefield Rural District Council.

46. In executing the works and exercising the powers authorised by this Part of this Act so far as they affect district roads and bridges vested in or under the control of the Wakefield Rural District Council (in this section called "the rural council") the following provisions for the protection of the council shall have effect unless otherwise agreed on in writing between the rural council and the Corporation (that is to say):—

- (1) All mains pipes or works to be laid in or along any district road shall so far as is reasonably practicable be constructed and laid in such position at the side thereof or otherwise as the rural council shall by writing under the hand of their surveyor reasonably direct Provided that this subsection shall not apply to service pipes:

- (2) Nothing in this Part of this Act shall authorise the Corporation to interfere with the structural part of any district road bridge without the consent in writing of the said surveyor. Such consent shall not be unreasonably withheld and may be given upon such conditions as the rural council may reasonably determine :
- (3) All works to be constructed or laid in along or across or in any way affecting any district road or bridge or any approach thereto shall be executed at the expense of the Corporation under the superintendence (if given) and to the reasonable satisfaction of the said surveyor and (except in the case of the service pipes) in accordance with plans and sections to be submitted to and approved of by him in writing before the commencement of any such work and seven days' notice shall be given to the said surveyor of the intention to lay any service pipe in such road. Provided that if the said surveyor shall not within seven days after the said plans and sections shall have been submitted so express his approval or disapproval thereof or signify his requirements in relation thereto he shall be deemed to have approved thereof :
- (4) Where any mains pipes or other works of the Corporation are to be laid down or constructed by the Corporation under the provisions of this Act beneath the surface of any district road or bridge the same shall if reasonably possible be laid or constructed at such a depth that not less than two feet six inches shall intervene between the surface of such road or bridge and the upper surface of such mains pipes or works :
- (5) Such works shall be so executed as not to interfere unreasonably with the traffic upon or over any district road or bridge or any approach thereto and all such works shall be proceeded with and completed with all reasonable despatch :
- (6) Nothing in this Act shall take away or interfere with the right of the rural council at any time or times to divert widen or improve any such district road or

A D. 1914.

bridge or the approaches thereto alongside or near to which any such mains pipes or works are carried in the same manner as they might have diverted widened or improved removed altered or renewed any such district road or bridge or the approaches thereto if this Act had not been passed and such mains pipes or works had not been constructed or laid in over alongside or near to such district road or bridge respectively without making any compensation to the Corporation for any expense or loss to which they may be put in consequence of such diversion widening improvement removal alteration or renewal And in the event of any such district road or bridge or the approaches thereto in alongside or near to which such mains pipes or works are laid being diverted widened or improved removed altered or renewed as aforesaid the Corporation shall at their own expense remove or alter the position of the said mains or pipes and the works by which the same are carried alongside or near to any such district road or bridge or the approaches thereto as aforesaid and replace the same to the reasonable satisfaction of the said surveyor of the rural council But if the Corporation elect not to so remove the said pipes in any district road they shall not be compelled to do so by reason of anything contained in this section Provided that before and during such diversion widening improvement removal alteration or renewal of any such district road or bridge as aforesaid the rural council shall afford reasonable facilities for temporarily carrying such mains or pipes along the district road or across the stream so as not to interrupt the continuous supply of gas :

- (7) If any difference arise between the Corporation and the rural council touching this section or anything to be done or not to be done thereunder such difference shall be settled by arbitration by an arbitrator to be agreed upon or failing agreement to be appointed by the Board of Trade on the application of either of the parties in difference after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

47.—(1) The prescribed testing-place shall be situated at some convenient part of the gasworks of the Corporation:

Provided that—

(A) If and whenever the Corporation shall so alter their gasworks as to enable them to supply gas to consumers in the urban district of Horbury from and by means of a separate gasholder from and by means of which gas shall not also at the same time be supplied to consumers within the borough the Horbury Urban District Council at their own expense may provide and maintain a testing-place within the said urban district and may therein provide and maintain apparatus for testing the calorific power of the gas mentioned in this section and such testing-place shall be a prescribed testing place within the meaning and for the purposes of the provisions of this section:

(B) No test shall be made at such last-mentioned prescribed testing-place except by a gas examiner appointed by the said urban district council or by the justices on the application of consumers of gas within that district:

(c) Before an official test is made at such last-mentioned testing-place reasonable notice of not less than two hours shall be given to the Corporation of the time at which it is proposed to make such test so as to enable them to be represented by some officer who shall not interfere in the testing.

(2) Within six months of the passing of this Act the Corporation shall provide at the prescribed testing-place at the gasworks apparatus for testing the calorific power of the gas supplied by them and such apparatus shall be the most suitable for ascertaining and in making the test shall be used in such a manner and under such conditions as to ascertain after any necessary calculations have been made the total heat value of the gas.

(3) The gas supplied by the Corporation shall when tested at a prescribed testing-place by means of the apparatus for testing the calorific power of such gas provided in accordance with the provisions of this section be of a standard calorific

A.D. 1914.
Substituting
standard
calorific
power for
prescribed
illuminating
power.

A.D. 1914. power of five hundred and forty British thermal units gross per cubic foot (the expression "British thermal units" being used in this Part of this Act as meaning British thermal units gross per cubic foot) Provided that the Corporation shall not be liable to any penalty or proceedings for or in respect of deficient calorific power of the gas so supplied by them except in accordance with the provisions of this section.

(4) The following provisions shall apply with respect to the testing for the calorific power of the gas supplied by the Corporation :—

(A) Any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment at the prescribed testing-place test the calorific power of the gas supplied by the Corporation at any hour of the day or night :

(B) The Corporation may if they think fit on each occasion of the testing of gas under the provisions of this section be represented by some officer who shall not interfere in the testing :

(c) Not more than one testing for calorific power shall be made on any one day (reckoned from midnight to midnight) except that in the event of the calorific power being on any testing ascertained to be below the standard calorific power above mentioned by more than seven and one-half per centum the gas examiner shall forthwith give notice thereof to the Corporation and a second testing shall be made at an interval of not less than one hour from the time of making the first testing at that testing-place and the average of the two testings shall be deemed to be the calorific power of the gas on that day.

(5) Where the calorific power on any day of the gas supplied by the Corporation is less than the standard calorific power above mentioned to an extent exceeding seven and one-half per centum the Corporation shall be liable to the following penalties in respect of any deficiency beyond such last-mentioned margin (that is to say):—

Where the deficiency does not exceed fourteen British thermal units two pounds ;

Where the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds; A.D. 1914.

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds:

Provided that the Corporation shall not be liable for more than one penalty in respect of a deficiency of calorific power of the gas supplied on any one day.

(6) (A) Section 12 of the Gasworks Clauses Act 1871 and so much of Schedule A to that Act as relates to the apparatus and the mode of testing illuminating power shall cease to apply to the Corporation and their gas undertaking and so much of section 2 of the Act of 1900 as incorporates the said section 12 and so much of the said Schedule A as aforesaid is hereby repealed.

(B) Sections 28 to 33 both inclusive of the Gasworks Clauses Act 1871 in their application to the Corporation and their gas undertaking shall be construed as if calorific power was therein referred to instead of illuminating power.

(7) (A) Sections 25 (Quality of gas) 26 (Testing-place) and 27 (Burner) of the Act of 1900 are hereby repealed.

(B) Section 30 (No penalty in case of unavoidable cause) of the Act of 1900 shall be read and have effect as if the words "defect of illuminating power" were omitted therefrom and as if the words "deficiency of calorific power" were inserted therein in lieu of those words.

(8) Nothing in this section shall exempt the Corporation or their gas undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

48. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Corporation by section 22 (Power to remove meter and fittings) of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Corporation shall not require to take a supply of gas from the Corporation or to hire from the Corporation all or any of the pipes meters fittings or apparatus belonging to the Corporation and let by them on hire to any former occupier of such premises. Power to enter premises and remove fittings.

A.D. 1914.

As to construction and placing of pipes &c. between mains and meters.

49. In order to enable the Corporation to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Corporation may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Corporation's mains and the meter so far as such pipes and fittings are intended to be covered over:
- (2) The Corporation may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper (or once in each of two newspapers) circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Corporation:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Corporation's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Corporation and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Corporation. Any officer of the Corporation duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Corporation's specification or if the meter is not placed as required by this section the Corporation may refuse to supply gas to the premises until the provisions of this section have been complied with:
- (6) Any person to whom the Corporation refuses a supply of gas under the provisions of this section may appeal

to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Corporation's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

A.D. 1914.

50.—(1) The Corporation may by notice in writing require a consumer of gas supplied by the Corporation and used for the working of an engine to fix and use an efficient anti-fluctuator in a suitable position upon the premises to which the gas is supplied and whereon the engine is in use or to keep an efficient anti-fluctuator so fixed and used in proper order and repair at all times while in use or to repair renew or replace an anti-fluctuator which is not in proper order or repair.

Anti-fluctuators to be used with gas engines.

(2) If the consumer after any such notice as aforesaid fails to fix and use an efficient anti-fluctuator or to keep an anti-fluctuator in proper order and repair or to repair renew or replace an anti-fluctuator which is not in proper order and repair the Corporation may cease to supply him with gas.

(3) The Corporation may at all reasonable times demand and shall thereupon have access to any anti-fluctuator fixed upon any premises to which gas is supplied by the Corporation and for the purpose of ascertaining whether the anti-fluctuator is efficient and in proper order or repair may take off remove test and inspect the anti-fluctuator such taking off removing testing and inspecting to be done at the expense of the Corporation if the anti-fluctuator be found efficient and in proper order but otherwise at the expense of the consumer.

(4) For the purposes of this section an "anti-fluctuator" means any apparatus article or thing for the purpose of controlling and regulating the supply of gas to any engine and preventing any inconvenience or danger from the intermittent consumption of gas by the engine.

51. If a person requiring a supply of gas from the Corporation for any premises occupies or has occupied other premises at which gas is being or was supplied to him by the Corporation and has not paid all gas charges and meter rent due from him to the Corporation they may refuse to furnish to him a supply of gas until he pays the same.

Power to refuse supply to persons in debt for other premises.

A.D. 1914.

PART V.

STREETS BUILDINGS SEWERS DRAINS &C.

Continuation
of existing
streets to be
deemed new
streets.

52. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force within the borough be deemed to be a new street.

Intersecting
streets.

53.—(1) The Corporation in any case in which it is proposed to lay out a new street may require that such street shall not be laid out without the provision of such intersecting street or streets as will secure intersecting streets at intervals of not more than one hundred and fifty yards each from the other on each side of such new street and of any street of which it forms a continuation. Provided that if on either side of such last-mentioned street there shall already be a greater length from the proposed new street than one hundred and fifty yards without an intersecting street such greater length shall for the purposes of this section be deemed to be one hundred and fifty yards.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) For the purposes of this section “intersecting street” means a side or cross street forming a junction with or crossing another street.

Widening of
roads when
only one side
is built upon.

54.—(1) When a road or lane within the borough is about to become a new street within the meaning of the Public Health Act 1875 but the land on only one side of such street has been or is about to be built upon the Corporation may instead of requiring the owner of the land built on or in course of being built on to widen such road or lane to a width prescribed by the byelaws in force in the borough require such owner to widen such road or lane so as to give a width of not less than one-half of such prescribed width from the old centre line of such road or lane to the boundary thereof adjoining such land.

(2) Provided that if and when the land on the opposite side of such road or lane shall be in course of being built on or prior to the Corporation approving plans for the erection of buildings upon the land on such opposite side the owner of such land shall subject as aforesaid complete the widening of such road or lane so as to give the complete width prescribed as aforesaid.

55. The Corporation may agree with the owner of any land in any street to give up land for the purpose of widening opening enlarging or otherwise improving such street in exchange for any part of such street which shall front other land belonging to such owner and shall be behind the general line of such street and which shall in the opinion of the Corporation be no longer required for public use or for approach to any property adjoining the same and for such other consideration (if any) as may be agreed and all public rights of way over any portion of any street so exchanged shall be extinguished.

A.D. 1914.
Exchange
of parts of
streets
disused.

56. The Corporation may and if required so to do by the owner shall purchase the land for the time being unbuilt upon lying between any line prescribed by them under the provisions of section 52 of the Act of 1875 and the street or road and such land when purchased shall vest in the Corporation as part of the street or road and the amount of purchase money shall in case of difference be settled in manner provided by the said section 52.

Amendment
of section 52
of Act of
1875.

57.—(1) Every person who intends to form a new street shall in addition to the information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings in force within the borough distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called "the building line").

Frontage
line in new
streets.

(2) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof nor any addition to any house or building until the building line for such street has been approved by the Corporation nor beyond or in front of the building line approved by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of section 3 of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been submitted to and approved by the Corporation.

A.D. 1914.

(4) In the event of the Corporation requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of the street than one-half of the width of the street and six feet in addition the Corporation shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(5) For the purpose of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

(6) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

Approval and
condition of
formation of
streets.

58. Whenever application shall be made to the Corporation to approve the laying out of or notice shall be given to the Corporation of intention to lay out a new street (including in that expression the formation of a new street or the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) within the borough the Corporation may require the owner of the estate or lands the development of which will be commenced or continued by the laying out of such new street to furnish the Corporation with plans and particulars showing the general scheme for the development or laying out of such estate or lands and in such case the date of the making of application or of the giving of notice as aforesaid shall for the purposes of any enactments or provisions in force for the time being with respect to the laying out of new streets be deemed to be the date on which plans and particulars required as aforesaid shall be so furnished.

Appeal to
petty ses-
sional court.

59.—(1) Any person deeming himself aggrieved by any requirement of or by the Corporation under either of the last two preceding sections of this Act may within fourteen days from the date of such requirement appeal to a petty sessional court and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(2) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the petty sessional court may direct. A.D. 1914.

60.—(1) The Corporation (if in the circumstances of the case they think it expedient so to do) may make it a condition of approving the plans for any new street that so soon as any building shall be erected or commenced to be erected in such new street the owners of the freehold of such new street shall where the footpath is paved provide a granite-paved crossing six feet in width across the end of such street nearest to such building and across every street intersecting either side of such new street between such building and such end of the new street. Paved crossings may be required in new streets.

(2) Any person who shall offend against this enactment shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) Nothing in this section shall empower the Corporation to require the execution of any works in a street repairable by the inhabitants at large.

61.—(1) It shall not be lawful for any person to fix or place any overhead rail beam cable or pipe or other similar apparatus (other than apparatus for telegraphic telephonic or railway purposes) over across or along any street without the consent of the Corporation which consent shall be in writing under the hand of the town clerk and shall not be unreasonably withheld and may contain such reasonable terms and conditions as the Corporation think fit. Restrictions on placing rail beams &c. over streets.

(2) Any person acting in contravention of the provisions of this section and of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(3) Nothing in this section shall extend to any works of any undertakers within the meaning of the Electric Lighting Act 1882 to which the provisions of the said Act apply.

(4) Nothing in this section shall extend to any apparatus belonging to His Majesty's Postmaster-General.

62. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall with respect to the borough extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection Prevention and removal of projections over streets.

A.D. 1914. from or at any building and whether erected before or after the passing of this Act which the Corporation may determine to be dangerous or an obstruction to the safe or convenient use of any street.

Lopping of overhanging trees and shrubs.

63.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to a court of summary jurisdiction within seven clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section.

For preventing soil and sand from being washed into streets.

64.—(1) The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon any private street communicating with any public street shall so fence off channel or embank their lands as to prevent the soil and sand of any such land from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) For the purpose of this section public street means a street repairable by the inhabitants at large and "private street" means a street not so repairable.

Street bins.

65. The Corporation may provide and maintain in the streets of the borough bins for sand and gravel or other materials and orderly bins or other receptacles for the collection

and temporary deposit of street refuse and waste paper in upon or under the streets of the borough of such dimensions and in such positions as they may from time to time determine. A.D. 1914.

66.—(1) Whenever any person erecting any building shall be desirous of leaving an opening which may be a source of danger to the public or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by the Corporation be well and sufficiently fenced off from the footpath or street. Forecourts to be fenced off from streets.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

67.—(1) The owner or owners of the premises the occupiers of which use in common any court or yard or passage (not being a highway repairable by the inhabitants at large) or of any part of such court yard or passage shall flag asphalte concrete or pave such court yard or passage or any part thereof and make a drain through or along the same or such part thereof as the Corporation require and keep such flagging asphalting concreting or paving and drain in good repair. Courts and passages to be flagged.

(2) If such owner or owners shall for one month after notice in writing from the Corporation fail in any respect to comply with the provisions of subsection (1) of this section he or they shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and the Corporation may themselves if they think fit do the work and recover the expense incurred by them in that behalf from such owner or owners.

68.—(1) No person except with the consent of the Corporation shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and the level thereof. No building allowed until street defined.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

69.—(1) In any case where a building shall have been reported to the Corporation as dangerous to the inmates thereof or persons working therein or in the case of any building which As to dangerous buildings.

A.D. 1914. — may appear to the Corporation on the report of any duly qualified officer to be dangerous to the inmates or persons working therein the Corporation may order a complete external and internal inspection and examination of any such building to be made by a competent person and for that purpose such person may on giving not less than twenty-four hours' notice to the occupier of the building and on producing written authority from the town clerk enter at any hour of the day between nine o'clock in the morning and six o'clock in the afternoon with such other persons as he may deem necessary upon such building and examine and inspect the same.

(2) If upon such examination and inspection it shall appear necessary that any works shall be executed or alterations made for the purpose of putting such premises into a safe and proper condition for the purposes for which the same are used the Corporation in respect of such building and the works to be carried out therein shall have and may exercise all or any of the powers vested in the Corporation with respect to dangerous structures in the borough.

Power to require taking down or repair of dilapidated buildings.

70.—(1) Where an unoccupied building is ruinous or so far dilapidated as thereby to have become and to be unfit for use or occupation or is from neglect or otherwise in a structural condition prejudicial to the property in or the inhabitants of the neighbourhood a court of summary jurisdiction on complaint by the Corporation may make an order upon the owner thereof requiring him within a reasonable time to be prescribed by the order to either put such building (in this section referred to as a "neglected structure") into a state of repair and good condition to the satisfaction of the Corporation or take down the same and in addition to or in substitution for the foregoing order they may make an order upon such owner requiring him to fence the ground upon which the neglected structure is or was standing or any part thereof and in either case they may also make an order for the costs incurred up to the time of the hearing.

(2) If the order is not obeyed within the time thereby prescribed the Corporation at any time after the expiration of such time may enter upon the neglected structure or such ground as aforesaid and execute the order.

(3) Where the order provides for the taking down of a neglected structure or any part thereof the Corporation after executing the order may (unless the expenses of the Corporation

under this section in relation to such structure are paid to them within seven days after such execution) sell the materials if and as they in their discretion think fit. A.D. 1914.

(4) All expenses incurred by the Corporation under this section in relation to a neglected structure may be deducted by the Corporation out of the proceeds of the sale and the surplus (if any) shall be paid by the Corporation to the owner of the structure and if such neglected structure or some part thereof is not taken down and such materials are not sold by the Corporation or if the proceeds of the sale are insufficient to defray the said expenses the Corporation may recover such expenses or such insufficiency from the owner of the structure together with all costs in respect thereof in a summary manner but without prejudice to his right to recover the same from any lessee or other person liable to the expenses of repairs.

71.—(1) In the case of any building to be connected with any sewer and intended to be erected on lands where by reason of mining operations subsidences may be reasonably expected to occur the Corporation may regulate and prescribe the level at which the ground floor of any such building is to be constructed and at the time of the deposit of plans and sections of any such building the Corporation may require any person intending to construct the same to specify the proposed level of the ground floor thereof. Construction of buildings on lands liable to subsidence.

(2) Any person failing to comply with the requirements of the Corporation under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

72. The Corporation may make byelaws with respect to the following matters (namely):— Byelaws as to materials and construction of buildings.

(1) The materials with which new buildings shall be constructed and the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings or be newly set or reset in existing buildings and the thickness and construction of walls of all ovens and furnaces wholly or partially built after the passing of this Act:

(2) The uniting of buildings and the making and stopping up of openings in party walls of buildings and the

A.D. 1914.

provision of fire-resisting doors in connexion therewith and as to the occupation of buildings when united:

(3) Woodwork in external walls of buildings:

(4) The testing of drains of new buildings.

Sanitary
conveniences
for workmen
engaged on
buildings.

73.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building in the borough shall if practicable provide to the reasonable satisfaction of the Corporation and until the completion of any such work or operation sufficient water or other closets and urinals.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Means of
escape from
buildings in
case of fire.

74.—(1) Every new building exceeding thirty-five feet in height used or intended to be used as a tavern hotel restaurant hospital boarding-house common lodging-house or school shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein or resorting thereto as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Corporation have issued a certificate that the provisions of this section have been complied with in relation thereto and such means of escape shall be maintained in good and efficient condition and free from obstruction.

(2) Nothing in this section contained shall be deemed to interfere with the operation of section 14 (Provision of means of escape in case of fire) and section 15 (Byelaws for means of escape from fire) of the Factory and Workshop Act 1901 or of any Act amending the same.

(3) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Firing places
in mills not
to open on
to streets.

75. When the plans of any new mill factory or building are submitted to the Corporation for approval the Corporation may require that no firing place shall be constructed so as to open directly on to any street or road.

Erection of
buildings to
a greater
height than

76.—(1) In case any building is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such

adjoining building are in the outer or party wall of the building so erected or raised the person erecting or raising such buildings shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised and the same shall be carried out in all respects in accordance with the bye-laws for the time being in force within the borough.

A.D. 1914.
adjoining
buildings.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

77. Section 23 of the Public Health Acts Amendment Act 1890 in its application to the borough shall have effect as if the words "and floor area" had been inserted therein after the word "height" in subsection (1) of that section.

Area of
habitable
rooms.

78. The owner of any dwelling-house the erection of which is commenced after the passing of this Act which is not provided with sufficient and suitable food storage accommodation who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Food storage
accommoda-
tion to be
provided in
new houses.

79.—(1) The Corporation may by resolution declare that any sewer for the time being belonging to them shall forthwith be appropriated and used for sewage (in this section called "sewage sewer") and they may also declare that any other sewer for the time being belonging to them shall forthwith be appropriated and used for surface water (in this section called a "surface water sewer").

Separate
sewers for
surface water
and sewage.

(2) Where under the provisions of any Acts for the time being in force in the borough the Corporation have power to require any street to be sewered they may require the provision of separate sewage sewers and surface water sewers and the provisions of those Acts shall apply to such sewers accordingly Provided that the provisions of this subsection shall not be exercised unless and until the Corporation shall have provided sewers adequate and proper for the purpose of receiving the sewage from such separate sewage sewers and shall have provided sewers or other outlets adequate and proper for the purpose of receiving the surface water from such separate surface water sewers.

(3) (A) Where in any such street separate sewage sewers and surface water sewers shall have been provided (whether before or after the passing of this Act) no sewage shall be allowed to

A.D. 1914. — pass from any premises into the surface water sewers and so far as practicable no surface or storm water other than from back roofs and paved yards of domestic dwellings shall be allowed to pass into the sewage sewers except with the consent in writing of the Corporation.

(B) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(c) Provided that in the case of any premises existing at the time of the provision of separate sewers the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient effectually to drain such premises the provisions of this subsection shall not apply to such premises until the Corporation have at their own expense made all necessary alterations to the drains and pipes of such premises in order to keep separate the sewage and surface water drainage thereof and the Corporation may if they think fit make all such alterations.

Boilers &c.
not to be
tapped or
blown off
direct into
sewer.

80.—(1) From and after the date of the passing of this Act it shall not be lawful for any person to tap or blow off any steam boiler in connexion with any premises where any trade or manufacture is carried on at a greater pressure than twenty pounds or to discharge the water from any dyepan or other receptacle into any sewer of the Corporation unless the water in such boiler or dyepan or receptacle shall have been so cooled as to effectually prevent any steam from such water being emitted in any street manhole gully or other drain opening in connexion with such sewer.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding twenty shillings.

Power to
require spe-
cially large
sewer in new
street.

81. If in any street not repairable by the inhabitants at large the Corporation for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Corporation and the additional cost thereof as ascertained by the surveyor shall be paid by the Corporation.

82. The Corporation may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation in case of dispute to be ascertained by and recovered before a court of summary jurisdiction.

A.D. 1914.
Power to
lay drains
in private
streets.

83. If the owner or occupier of any premises within the borough desires that the sewers or drain from such premises shall be made to communicate with any sewer of the Corporation such communication shall be made by the Corporation who may execute all works necessary for the purpose and the cost or estimated cost of making the communication and executing such works shall be secured to the Corporation to their satisfaction.

Making of
communica-
tions between
drains and
sewers.

84.—(1) It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Corporation except in accordance with the provisions of the byelaws of the Corporation relating to the drainage of existing buildings.

Reconstruc-
tion of
drains.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

85.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Corporation without giving to the Corporation or the surveyor or inspector of nuisances twenty-four hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so.

Notice of
intention
to repair
drains.

(2) Free access to such drain or work of repair shall be afforded to the inspector of nuisances or any officer of the Corporation authorised in writing by the town clerk for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

A.D. 1914.

Wilful
damage to
drains and
waterclosets.

86.—(1) No person shall cause any drain watercloset earth-closet privy ashpit or dustbin to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

(3) Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Amendment
of section 19
of Public
Health Acts
Amendment
Act 1890.

87. The powers given by section 19 (Extension of 38 & 39 Vict. cap. 55 sec. 41) of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Corporation
may order
houses to
be drained
by combined
drain.

88.—(1) If it appears to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of a sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Corporation shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Corporation.

89.—(1) Where a sufficient water supply and sewer are reasonably available no new closet shall be erected in place of any existing closet accommodation in connexion with any building unless such new closet be a watercloset which shall comply with the byelaws for the time being in force and shall communicate with a sewer.

A.D. 1914.
Existing closets when altered to be replaced by waterclosets.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

90. Any river stream or watercourse or any part or parts thereof respectively so choked or silted up as to obstruct or impede the proper flow of water along the same and thereby to cause or render probable an overflow of such river stream or watercourse on to or into the land and property adjacent thereto shall be deemed to be a nuisance within the meaning of section 91 (Definition of nuisances) of the Public Health Act 1875 and all the provisions of that Act relating to nuisances shall apply to every such river stream or watercourse notwithstanding that the same may not be injurious to health.

Watercourse choked up to be a nuisance under Public Health Act 1875.

91.—(1) Before the owner of any land shall culvert or cover over any watercourse thereon forming part of the natural drainage of the area involved he shall submit for the approval of the Corporation plans sections and specifications of such watercourse and the method of culverting or covering over the same and the Corporation may subject as herein-after provided require such owner so to construct any such culvert or so to cover over any such watercourse as to secure the free and uninterrupted passage of the water flowing in any such watercourse:

Water-courses not to be covered over except in accordance with approved plans.

Provided that—

(A) No requirement of the Corporation under this section shall operate to compel any such owner to receive upon his land or to make provision for the passage of a greater quantity of water than he would have been obliged to receive or to permit to pass if this section had not been enacted:

(B) If with the consent of such owner the Corporation shall require him to make provision for the passage of a larger quantity of water than he is obliged to permit to pass at the time of the commencement of any work under this section any additional cost occasioned by such requirement shall be borne by the Corporation.

A.D. 1914.

(2) If any difference shall arise between the Corporation and such owner as to the expediency or necessity of the works required by the Corporation to be executed or otherwise under this section such difference shall be referred to arbitration and the provisions of the Arbitration Act 1889 shall apply thereto.

(3) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(4) Nothing in this section shall prejudice or affect the rights of any railway company under any statutory provision to culvert or cover any watercourse.

As to houses
without
proper water
supply.

92. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available.

Power to
enter pre-
mises.

93. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of this Part of this Act as if those purposes had been mentioned in the said section.

Penalty on
occupiers
refusing
execution
of Act.

94. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under this Part of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Saving for
Great North-
ern Railway
Company.

95.—(1) Nothing in the sections of this Act herein-after mentioned shall apply to any work constructed or to be constructed by the Great Northern Railway Company as a part of

or in connexion with their railway under any statutory powers or to any lands held or acquired or which may hereafter be held or acquired by that company and used for the purposes of their undertaking with the authority of Parliament. A.D. 1914.

(2) The marginal notes of the sections of this Act hereinbefore referred to are the following:—

Continuation of existing streets to be deemed new streets;
 Intersecting streets;
 Widening of roads when only one side is built upon;
 Frontage line in new streets;
 Approval and condition of formation of streets;
 Restrictions on placing rail beams &c. over streets;
 Prevention and removal of projections over streets;
 Reconstruction of drains;
 Notice of intention to repair drains;
 Watercourses not to be covered over except in accordance with approved plans.

96. The provisions of this Part of this Act shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by a railway company as a part of or in connexion with their railway under any Act of Parliament. General saving as to railway companies.

PART VI.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

97.—(1) The occupier of any building in the borough which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonable require for the purpose of enabling measures to be taken to prevent the spread of the disease. Information to be furnished to medical officer and penalty for furnishing false information.

(2) Any occupier knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) In this section the expression “occupier” shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

A.D. 1914.

For preventing
contact with
body of person
dying of infec-
tious disease.

98. Any person who being in charge of the body of any person who has died from any infectious disease shall permit or allow any other person unnecessarily to come into contact with such body shall be liable to a penalty not exceeding five pounds.

Removal of
body of
person dying
of infectious
disease.

99. When any person suffering from infectious disease whereof notice shall have been or ought to have been given to the medical officer shall die in the borough of such disease and the medical officer shall give notice thereof to the person responsible for the conduct of the burial of the body of such person it shall not be lawful to transport such body by railway or other public conveyance (not being a conveyance reserved for such purpose) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds.

To prevent
spread of
infectious
disease
amongst
children in
Sunday
schools.

100.—(1) No person being the parent or having the care or charge of a child who is or has been attending any school or any part thereof which has been closed by order of the Corporation or of the Education Committee of the Council with the view of preventing the spread of infectious disease or of a child who with the same object in view has been prohibited from attending school by the medical officer or school medical officer shall permit such child to attend any Sunday school in the borough without having procured from the medical officer a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school without undue risk of communicating disease to others.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding forty shillings.

Measles
chicken-
pox and
whooping
cough.

101.—(1) Any parent or guardian having personal charge of a child in attendance at a school who is aware of or has reason to suspect the occurrence of any of the diseases known as measles german measles chicken-pox or whooping cough in any member of the family and who fails forthwith to notify such occurrence

to the head teacher of the school shall be liable to a penalty not exceeding twenty shillings. A.D. 1914.

(2) If any person not less than sixteen years in age while suffering from any one of the diseases of measles german measles chicken-pox or whooping cough wilfully exposes himself without proper precautions against spreading the disease in any street public place shop inn or any public conveyance or being in charge of any person so suffering wilfully exposes such sufferer he shall be liable to a penalty not exceeding five pounds.

(3) In this section the expression "school" includes a Sunday school.

(4) The provisions of this section shall cease to be in force at the expiration of five years from the date of the passing of this Act unless they shall have been continued by Act of Parliament or by an order of the Local Government Board which order the Local Government Board are hereby empowered to make.

102.—(1) Any person being a manufacturer vendor or merchant of or dealer in ice-cream or other similar commodity who within the borough—

For regula-
ting manu-
facture and
sale of ice-
cream &c.

(A) Causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping-room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain ; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer ;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice-cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in such building and

A.D. 1914. the Corporation shall compensate the owner of the ice-cream commodity or materials so destroyed.

(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4) (A) Any officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer vendor or merchant of or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Corporation would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned.

(B) Any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

No place used for storage &c. of human food to be used as a sleeping-place.

103.—(1) No room shop or other part of a building in which any food is sold or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall be used as a sleeping-place.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of a building as a sleeping-place in contravention of this section he shall be liable to a penalty not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings. No penalty shall be imposed for an offence against this section if in the opinion of the court the occupation of such room shop or other part of a building in contravention of this section has not caused risk of infection or of contamination of food.

(3) The Corporation or any of their officers shall have the like right of entry upon any such room shop or other part of a building as they would have had under section 102 (Power of entry of local authority) of the Public Health Act 1875 if there had been a nuisance arising in respect of any business carried on therein.

(4) Any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings. A.D. 1914.

104.--(1) If the medical officer has reasonable cause to suppose that any house is infested with vermin he or any inspector of nuisances may enter into such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin. Houses infested with vermin to be cleansed.

(2) Where on the certificate of the medical officer it appears to the Corporation that any house is infested with vermin the Corporation shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in the notice to remove the wallpaper from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable to a penalty not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as herein-after provided) be recoverable from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in the notice given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly

A.D. 1914. or in part by the person to whom the notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

Regulation
dustbins.

105. The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide galvanised iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such bins shall be of such size and construction as may be approved by the Corporation and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation shall for every such offence be subject to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings Provided that this section shall not apply to any ashpits or any ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable size and in proper order and condition.

Public notice
to be given
of provisions
of this Part
of Act.

106.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the town hall and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART VII.

FINANCIAL AND RATING PROVISIONS.

Power to
borrow.

107.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest the sum requisite for paying the costs charges and expenses of this Act as herein-after provided and in order to secure the repayment of such sum and the payment of interest thereon they may mortgage or charge the district fund and general district rate and they shall pay off all moneys so borrowed within the period (in this Act referred to as “the prescribed period”) of five years from the passing of this Act.

(2) (A) The Corporation may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act. A.D. 1914.

(B) In order to secure the repayment of the money borrowed under this subsection and the payment of the interest thereon the Corporation may mortgage or charge such fund rate or revenue as the Local Government Board may prescribe.

(c) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Local Government Board.

(3) The provisions of this section shall not limit the powers conferred upon the Corporation by the section of this Act of which the marginal note is "Power to use one form of mortgage for all purposes."

108.—(1) The Corporation if they think fit may borrow or re-borrow any moneys which they are by this Act or by the Act of 1875 authorised to borrow or re-borrow or any part thereof respectively under the powers and subject to the provisions of the Local Loans Act 1875 by means of a loan or loans to be raised by the issue of debentures or annuity certificates or partly in one way and partly in another. Power to borrow under Local Loans Act 1875.

(2) Any moneys borrowed or re-borrowed in manner authorised by this section for any of the purposes of this Act or the Act of 1875 shall be a charge upon and shall be paid out of the same funds rates and revenues as they would be charged upon and paid out of if raised by mortgage under this Act or the Act of 1875 and such funds rates and revenues shall in each case be the local rate within the meaning and for the purposes of the Local Loans Act 1875.

(3) Every such loan shall be discharged within the period prescribed for the repayment thereof.

(4) Section 45 of the Act of 1900 (so far as the same is incorporated in this Act) and the section of this Act whereof the marginal note is "Return to Local Government Board as to sinking funds" shall apply to any sinking fund provided by the Corporation for the repayment of any moneys so borrowed by them under the Local Loans Act 1875 in lieu of the provisions of sections 15 and 16 of that Act.

A.D. 1914.
Application
of provisions
of Act of
1900.

109. The following provisions of the Act of 1900 shall with any necessary modifications and subject as regards mortgages granted under the provisions of the section of this Act of which the marginal note is "Power to use one form of mortgage for all purposes" extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely):—

- Section 37 (Proceeds of sale of surplus lands);
- Section 41 (Certain regulations of Public Health Act as to borrowing not to apply);
- Section 42 (Provisions of Public Health Act as to mortgages to apply);
- Section 45 Subsections (1) to (11) both inclusive—
(Sinking fund);
- Section 47 (Protection of lender from inquiry);
- Section 48 (Corporation not to regard trusts);
- Section 49 (Application of money borrowed);
- Section 51 (Saving for existing charges);
- Section 56 (Inquiries by Local Government Board):

Provided that in its application to the provisions of this Act the said section 49 shall be read and have effect as if the words "except in the case of money borrowed for current" expenses under the provisions of the section of this Act of "which the marginal note is 'As to temporary borrowing'" were therein inserted after the words "under this Act":

Provided also that in its application to the provisions of this Act the said section 51 shall be read and have effect as if the words from "and all such charges" to the words "on the same revenue rate and property" were omitted therefrom.

Mode of
payment off
of money
borrowed.

110.—(1) The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods or partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments within six months from the date of borrowing.

(2) So much of section 58 (Payment of mortgages by instalments or sinking fund) of the Act of 1875 as is rendered unnecessary by the provisions of this section is hereby repealed. A.D. 1914.

111. If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation. Receipt in case of persons not sui juris.

112. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the borough fund or the district fund as the Corporation may in their discretion having regard to the object of the expenditure deem just. Expenses of execution of Act.

113. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act. Audit of accounts.

114. The Corporation may from time to time appoint and pay one or more persons being members of the Institute of Chartered Accountants in England and Wales or of the Incorporated Society of Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in addition to the auditors appointed under the Municipal Corporations Act 1882. Corporation may appoint additional auditors.

115.—(1) The Corporation shall have power—

- (A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid ; or
- (B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

Power to re-borrow.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to

A.D. 1914. the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (A) By instalments or annual payments; or
- (B) By means of a sinking fund; or
- (C) Out of moneys derived from the sale of land; or
- (D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 62 (Power to re-borrow) of the Act of 1875 Article VII. of the Ossett Order 1898 and section 46 (Power to re-borrow) of the Act of 1900 are hereby repealed but without prejudice to anything done or suffered to be done thereunder.

Power to invest all sinking funds in statutory securities.

116. When under the provisions of any Act of Parliament or of any order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund for the payment off of moneys borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

Power to use one form of mortgage for all purposes.

117.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the First Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any

precedence in the date of any statutory borrowing power or in the date of any mortgage or on any other ground whatsoever. A.D. 1914.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the treasurer or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the First Schedule to this Act or to the like effect.

(9) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere

A.D. 1914. — the same shall be produced to the treasurer who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(11) If the treasurer wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Evidence of title.

118.—(1) The Corporation before the registration in the books of the Corporation of any transfer or transmission of any mortgage or other security (except securities issued under the Local Loans Act 1875) may require evidence of the title of any person claiming a right to such transfer or transmission to be registered in the books of the Corporation.

(2) Such evidence shall be a statutory declaration of one or more competent persons or such other evidence as the Corporation may require.

Evidence of transfer on transmission of securities.

119. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875) except upon the production to and temporary deposit with the treasurer of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in the case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Closing of transfer books.

120.—(1) The Corporation may as regards any portion of mortgage loans or other securities for loans to the Corporation (except securities issued under the Local Loans Act 1875) close

the Corporation transfer books for such mortgage loans or other securities for a period not exceeding fifteen days immediately preceding the first day of April and the first day of October in every year. A.D. 1914.

(2) The persons who on the day of such closing are inscribed as Corporation mortgagees or other obligees shall as between them and their transferees of Corporation mortgage loans and other securities be entitled to the dividend or interest or other periodical payment next payable thereon.

121.—(1) Where the Corporation are authorised by any statutory borrowing power to raise moneys for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said moneys either wholly or partially by using for such purpose so much of any moneys for the time being forming part of a sinking fund as shall be available for the repayment of— Power to use sinking fund instead of borrowing.

(A) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(B) Moneys borrowed and charged upon all the revenues of the Corporation in manner provided by the section of this Act whereof the marginal note is “Power to use one form of mortgage for all purposes” and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Corporation when exercising the powers conferred on them by this section shall—

(A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund:

(B) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the

A.D. 1914.
—

amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund:

- (c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and reborrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

Return to
Local Government
Board as
to sinking
funds.

122.—(1) The treasurer shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to the sinking fund in respect of any of the moneys raised by the Corporation in pursuance of any statutory borrowing power and not raised by the issue of stock and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may be prescribed by the Board and if required by the Board verified by a statutory declaration of the treasurer showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year together with

such further information (if any) as the Board shall require and in the event of his failing to make such return the treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court. A.D. 1914.

(2) If it appears to the Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for the sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

(3) Section 63 (Annual return to Local Government Board with respect to sinking fund) of the Act of 1875 (Article XI. of the Ossett Order 1898) and section 50 (Annual return to Local Government Board with respect to sinking fund) of the Act of 1900 are hereby repealed.

123.—(1) For the purpose of providing temporarily during any financial year for their current expenses as a municipal or sanitary authority (whether under the provisions of public general or local Acts) or for the current expenses of their gas water and tramway undertakings respectively and after the commencement of such year it shall be lawful for the Corporation to borrow by way of temporary loan or overdraft from any bank or on temporary loan on deposit receipt from any person such sums as they may from time to time resolve not exceeding in each case an amount equal to one-fourth of the amount of the before-mentioned expenses for the immediately preceding financial year for any such purpose as aforesaid and any amount so borrowed shall form a charge upon the rates or revenue of the undertaking in respect of which it is borrowed as the same may

As to temporary borrowing.

A.D. 1914. — be specified in the resolution of the Corporation authorising such borrowing *pari passu* with any Corporation stock bond or mortgage affecting the same and it shall further be lawful for the Corporation to utilise for providing temporarily for any such expenses any sinking funds which they may have on hand crediting the said sinking funds with such fair rate of interest not being less than three per centum per annum as they may resolve Provided that—

(A) Any sum so borrowed together with the interest thereon shall in the case of any sum borrowed on the credit of a rate be repaid out of such rate within the financial year during which the same was borrowed and in any other case the same shall be repaid out of the income on the credit of which the sum was borrowed within two months after the expiration of such financial year :

(B) The treasurer shall within forty-two days after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that Board shall approve or require :

(c) The Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this section as to repayment have been complied with and if it appear to the Local Government Board by the said report or by such investigation that the Corporation have failed to comply with the requirements of this section as to repayment that Board may by order suspend the operation of the powers of this section for such period as they may think fit.

(2) The provisions of this section shall cease to be in force at the expiration of five years from the thirty-first day of March one thousand nine hundred and fifteen unless they shall have been continued by Act of Parliament or Provisional Order made by the Local Government Board and confirmed by Parliament which order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875 and in the event of that Board making

any such order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to them to be necessary. A.D. 1914.

124.—(1) The Corporation shall apply all money received by them on account of the revenue of their water undertaking in manner and in the order following (that is to say):—

Application of revenue and payment of deficiencies in relation to water undertaking.

First—In payment of the working and establishment expenses and cost of maintenance of the undertaking;

Secondly—In payment of the interest on moneys borrowed by the Corporation for the purposes of the undertaking;

Thirdly—In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;

Fourthly—In extending and improving (if the Corporation think fit) any works for the purposes of the undertaking;

Fifthly—In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to five thousand pounds which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens:

Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum and the Corporation shall carry to the district fund so much of any balance remaining in any year of the revenue of the undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

A.D. 1914.

(2) Any deficiency in the revenue of the water undertaking shall be made good out of the district fund and the next general district rate to be made by the Corporation shall be increased so far as may be necessary to raise money to recoup to the district fund the amount so defrayed out of that fund.

(3) Section 56 (Application of receipts of local board in relation to water undertaking) of the Act of 1875 is hereby repealed.

Scheme
for fixing
equated
periods.

125.—(1) The Corporation may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers (and either with or without any of the loans mentioned in the Second Schedule to this Act) shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may apply to any such loans all or any of the provisions of the Act of 1900 in regard to the borrowing and repayment of money, with or without modification and may make provision in regard to all matters incidental to the objects aforesaid.

(2) No scheme made by the Corporation under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act. Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

(3) The Corporation may with the sanction of the Local Government Board and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Corporation for their consent thereto and any moneys so borrowed shall be repaid within such period as the Local Government Board may sanction.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme. A.D. 1914.

126. Notwithstanding anything contained in any Act order or sanction authorising the borrowing or raising by the Corporation of the several loans mentioned or referred to in the Second Schedule to this Act the following provisions shall apply thereto :— Repayment of scheduled loans.

The amounts outstanding on the thirty-first day of March nineteen hundred and fourteen in respect of the loans mentioned in column five of the said schedule shall be repaid within the periods set opposite such several loans in the eleventh column of the said schedule. The provisions of the Acts orders or sanctions which respectively apply to such loans immediately before the passing of this Act shall *mutatis mutandis* apply to all the said loans in like manner as if they had respectively been raised under the said Acts orders or sanctions and the said periods specified in the eleventh column of the said schedule shall be the prescribed period for the purposes of these provisions. Provided that for the purposes of the repayment of the said loans and the application of any sinking fund set aside before or after the passing of this Act in respect thereof the said loans contained in each separate part of the said schedule may be consolidated and deemed to form one loan.

127. The powers of section 221 (Rates may be amended) of the Public Health Act 1875 shall extend to enable the Corporation to amend any rate made by them in pursuance of such Act so as to make the assessment to such rate accord with any new or supplementary valuation list made during the currency of such rate. Power to amend rates to accord with new valuation lists.

128.—(1) The Corporation may if they think fit in lieu of themselves making assessing and levying any general district rate order such rate to be made assessed and levied in the same manner as a borough rate and may enforce the payment thereof from the overseers in the same manner as in the case of the borough rate and if any such order be made by the Corporation the general district rate shall be made assessed and levied by the overseers in the same manner and under the same provisions (including the provisions as to appeals) as in the case of the General district rate may be assessed as borough rate.

A.D. 1914. — poor rate but subject to the exemptions (partial or otherwise) for the time being applicable to such general district rate in respect of any property in the borough and such rate may be assessed and levied either separately or together with the poor rate assessed and levied in respect of the hereditaments rateable to such rate:

Provided that the demand note served upon any railway company for any such rate shall show distinctly on the face of it the respective assessments as well as the actual rates proposed in each case to be levied and nothing to be done under this section shall operate to deprive any railway company of the benefit of the provisions of section 211 of the Public Health Act 1875 or any other enactment for the time being in force with respect to the assessment of any land used as a railway constructed under the powers of any Act of Parliament.

(2) In the event of the Corporation making any order in pursuance of this section—

(A) Any other rate for the time being leviable by the Corporation and any water rates rents or charges (including meter rents) payable to the Corporation may be included with the poor rate (but distinguished therefrom) in any book or books of assessments and in one demand note The demand note shall be in such form as the Local Government Board may approve:

(B) The overseers shall recover and enforce the poor rate in the same manner as the general district rate is recoverable and enforceable under the Public Health Act 1875 and the provisions of section 2 (In default of distress for non-payment of rates justices may issue warrant of commitment) of the Distress for Rates Act 1849 with respect to the recovery and enforcement of the poor rate shall cease to apply Provided that any provisions limiting the period within which proceedings must be commenced for the recovery of the general district rate in a court of summary jurisdiction shall not apply to the poor rate:

(c) Within the first financial year after the making of such an order the Corporation may notwithstanding anything to the contrary contained in the Waterworks Clauses Act 1847 alter and adjust the dates for the

payment and recovery of water rates to correspond as nearly as practicable with the dates and periods for the levying and collection of the poor rate and for the purpose of bringing into operation such adjustment and thereafter it shall be lawful for the Corporation to recover water rates for one or more quarters of any such financial year at the same time as the overseers are entitled to recover the poor rate but so that such water rates shall not in any case be recoverable in advance for more than one quarter of any year. A.D. 1914.

The expenses of the overseers in connexion with the assessment levying and collection of the general district rate shall be paid out of the district fund.

129. On an order being made by the Corporation in pursuance of the section of this Act whereof the marginal note is "General district rate may be assessed as borough rate" the following provisions shall apply and have effect (that is to say):— Owner may be rated instead of occupier in certain cases.

- (1) It shall be lawful for the Corporation if they think fit to rate any owner or owners of rateable property of which the full net annual value does not exceed the sum of eight pounds or which is let to weekly or monthly tenants or in separate apartments or for which the rent becomes payable or is collected at any shorter period than quarterly instead of rating the occupier or occupiers of such property and every such owner so rated shall pay such rates instead of the occupier. But in every such case the Corporation shall make to such owner any allowance they think reasonable not exceeding ten pounds per centum of such net annual value by way of compensation. Provided that the percentage of any such allowances shall be alike in cases where the circumstances are similar. Provided further that where the owner is willing to enter into an agreement to pay the rates whether the premises are occupied or not the Corporation may make a further allowance not exceeding five pounds per centum of the said net annual value. Provided also that the Corporation shall not be bound to make any allowance as provided by this section where the amounts due in respect of rates are not

A.D. 1914.

paid within three months after the rate shall have been made or within two months after the same shall have been demanded whichever shall be the later:

(2) When the Corporation exercise the option under this section of causing the owner to be rated instead of the occupier they shall forthwith give notice thereof to the overseers and the overseers shall rate the owner accordingly and the provisions of this section shall apply within the borough in substitution for the provisions of sections 3 4 and 5 of the Poor Rate Assessment and Collection Act 1869 and subject to and with such substitution as aforesaid the provisions of such Act as amended by the Local Government Act 1894 shall remain in operation and shall extend and apply to the general district rate (in substitution for the provisions of section 211 of the Public Health Act 1875) in like manner as to the poor rate:

(3) Unless and until the Corporation exercise the option given to them by this section the provisions of sections 3 4 and 5 of the Poor Rate Assessment and Collection Act 1869 as amended by the Local Government Act 1894 shall remain in operation and the provisions of such first-named Act as amended as aforesaid shall extend and apply to the general district rate (in substitution for the provisions of section 211 of the Public Health Act 1875) in like manner as to the poor rate.

Audit of
accounts.

130.—(1) In the event of the Corporation making an order in pursuance of the section of this Act the marginal note whereof is "General district rate may be assessed as borough rate" the accounts of the overseers and collectors of poor and other rates relating to the general district rate shall be submitted to and be audited by the district auditor in the manner provided by section 37 (Rates made by overseers not now audited made subject to the audit of district auditor) of the Divided Parishes and Poor Law Amendment Act 1876 and that rate shall be deemed to be a rate within the meaning of that section.

(2) The overseers shall prepare and submit to the district auditor at every audit of their accounts a financial statement in duplicate in the form and containing the particulars from time to time prescribed by the Local Government Board in respect

of the general district rate One of such duplicates shall have the stamp duty chargeable according to the scale contained in the District Auditors Act 1879 affixed thereon and calculated according to the total of the sums paid to the Corporation during the period to which the statement relates and the provisions of the District Auditors Act 1879 as to the duties of the auditor with reference to such duplicates shall apply as if the said duplicates were prepared and submitted under that Act. A.D. 1914.

(3) The Corporation shall repay to the said overseers the amount of any stamp duty which may be paid by them upon any financial statement pursuant to the provisions of this Act.

(4) The provisions of section 5 (Regulations as to audit) and section 6 (Stamp duties under Inland Revenue) of the District Auditors Act 1879 shall apply to the accounts of the overseers and collectors and to the stamp duty on such financial statements as aforesaid and any overseer who shall fail to comply with the provisions of this Act with respect to a financial statement shall be liable to the penalty provided in section 7 (Failure to submit financial statement) of the last-mentioned Act.

131.—(1) The Corporation may appoint and remove such officers as they deem necessary to assist the overseers of the township of Ossett in the discharge of their duties and the salaries and expenses of such officers shall be determined by the Corporation and paid out of the poor rate and other local rates and funds and in such proportions as the Corporation shall determine. Appoint-
ment of
officers to
assist over-
seers.

(2) All officers so appointed shall give security for the due performance of their duties as may be required by the Corporation and such security shall be deposited with the treasurer.

132. In any rate which the Corporation may make during a period of five years after the passing of this Act they may provide for the raising of money to meet and pay expenses incurred in connexion with their water undertaking at any time before the making of such rate. Rates may
be retro-
spective
for certain
purposes.

133.—(1) The Corporation may if they think fit form a fund to be called "the accident fund" to provide for meeting claims upon them under the common law the Employers Liability Act 1880 the Workmen's Compensation Act 1906 or any Act or Acts for the time being amending or extending those Acts or otherwise in respect of any accident occurring in the execution of any of their powers and such fund shall be Power to
create acci-
dent fund.

A.D. 1914. — formed by annually appropriating thereto such sums out of any of their revenues as they may from time to time deem expedient and such sums shall be invested at compound interest in or upon statutory securities and accumulated until the same shall amount to the sum of two thousand five hundred pounds Provided that the Corporation may from time to time or at any time resort to that fund for any purpose mentioned in this section notwithstanding that the same shall not then have reached or shall have been reduced below the said sum of two thousand five hundred pounds and if the said fund be reduced at any time it may in manner provided by this section be restored to the said amount.

(2) If at any time it should be necessary for making any payment for any compensation to which this section relates to borrow money the Corporation may with the sanction of the Local Government Board borrow the necessary sum on the security of the revenues of the Corporation.

PART VIII.

MISCELLANEOUS PROVISIONS.

For protec-
tion of Great
Northern
Railway
Company.

134. For the protection of the Great Northern Railway Company (in this section referred to as "the company") the following provisions shall unless otherwise agreed between the Corporation and the company be observed and have effect (that is to say) :—

(1) Whenever under the powers of Parts III. and IV. of this Act the Corporation shall require to lay down place repair alter remove and renew any mains pipes culverts or apparatus upon across or under any railway for the time being belonging to or worked by the company or the stations bridges approaches or other works thereof or to construct any works adjoining thereto they shall give to the engineer of the company fourteen days' notice in writing of their intention to carry out any such works accompanied by sufficient plans :

(2) Such works including the making good and repairing of any roads over any such railway and over any bridges and approaches which the company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the

A.D. 1914.

Corporation shall be laid constructed and executed at the expense of the Corporation under the superintendence (if given) and to the reasonable satisfaction of the said engineer and according to plans and sections to be previously submitted to and reasonably approved by him and so as to avoid as far as possible injury to any such railway or any of the works thereof and so as not to cause any interruption to the passage or conduct of the traffic over or at any such railway or station Provided that if the said engineer shall not express his approval or disapproval of the said plans and sections within fourteen days after their submission to him by the Corporation he shall be deemed to have disapproved thereof:

- (3) When the Corporation open or break up any road or pavement of any street or other works belonging to or repairable by the company they shall with all convenient speed complete the work for which the same shall be broken up and re-instate and make good the road or works so opened or broken up and shall keep any road or pavement so broken up in good repair for three months after reinstatement and making good and for such further time (if any) as the soil so broken up shall continue to subside:
- (4) If the Corporation make delay in completing such work or re-instating and making good such road or works so opened or broken up or neglect to keep the road or pavement in repair as aforesaid the company may cause the work so delayed or omitted to be executed and the reasonable expense incurred by them in executing the same shall be repaid to them by the Corporation:
- (5) The Corporation shall repay to the company the expense of any temporary works or watching which the company may reasonably consider necessary to provide for the protection of any such railway or the traffic thereon during the carrying out of the works aforesaid:
- (6) If any injury shall owing to or by reason of any of the matters aforesaid arise to any such railway or works or interruption to such traffic the Corporation shall

A D. 1914.

make full satisfaction in respect thereof to the company and in the event of any dispute as to the amount of such satisfaction the same shall be determined by arbitration in manner herein-after provided:

- (7) Any difference which may arise between the Corporation and the company under the provisions of this section shall unless otherwise agreed be settled by an engineer or other fit person to be appointed failing agreement between the parties by the President of the Institution of Civil Engineers at the request of either of them after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Ejection of steam and waste gas to annoyance of public.

135. All steam or waste gas ejected from any fixed engine or the boiler or condensers thereof and all condensing water above a temperature of one hundred and ten degrees Fahrenheit so ejected and all spent and ejected steam arising or produced in any trade business or manufacture shall be so discharged as not to be an annoyance to the public but nothing in this section shall apply to steam ejected from any locomotive boiler or engine now or hereafter belonging to any railway company Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

As to breach of conditions of consent of Corporation.

136. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Consent of Corporation to be in writing.

137. All consents given by the Corporation under the provisions of this Act shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk.

As to notices &c.

138.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly

authorised officer of the Corporation shall be sufficient authentication. A.D. 1914.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

139. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer or valuer of the Corporation or by any conviction or order by a court of summary jurisdiction under any provision of this Act may appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts. As to appeal.

140. The provisions of the following sections of the Public Health Act 1875 (namely) :-- Confirmation of byelaws.

Section 182 (Authentication and alteration of byelaws);

Section 183 (Power to impose penalties on breach of byelaws);

Section 184 (Confirmation of byelaws); and

Section 185 (Byelaws to be printed &c.);

so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act.

141. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town Evidence of appointments authority &c.

A.D. 1914. — clerk shall be primâ facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

In executing works for owner Corporation liable for negligence only.

142. Whenever the Corporation or the surveyor under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Apportionment of expenses in case of joint owners.

143. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Recovery of penalties &c.

144. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs and expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of demands.

145. Proceedings for the recovery of any demand made under the authority of this Act or under the authority of the Act of 1875 or the Act of 1900 or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court

having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. A.D. 1914.

146. Save as herein expressly provided all informations and complaints under and for the breach of any of the provisions of this Act the Act of 1875 the Act of 1900 or the Public Health Acts or of any byelaws made thereunder or of the Town Police Clauses Act 1847 or of the Towns Improvement Clauses Act 1847 as incorporated with the Public Health Act 1875 or the Town Police Clauses Act 1889 or the Municipal Corporations Acts may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk. Informations by whom to be laid.

147. All penalties recovered on the prosecution of the Corporation or any officer of the Corporation on their behalf under this Act or under any byelaw thereunder shall be paid to the treasurer and be by him carried to the credit of the borough fund or to such other fund as the Corporation shall direct. Penalties to be paid over to treasurer.

148. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted. Damages and charges to be settled by court.

149. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall with any necessary modifications extend and apply to the purposes of this Act as if the same were re-enacted herein. Application of section 265 of Public Health Act 1875.

150. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence. Saving for indictments &c.

151. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for Compensation how to be determined.

A.D. 1914. such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

Judges not disqualified. **152.** A judge of any court or a justice shall not be disqualified from acting in the execution of this Act or of any local Act for the time being in force in the borough by reason of his being liable to any rate.

Powers of Act cumulative. **153.** All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Crown rights. **154.** Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act. **155.** The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or borough rate and out of the district fund or general district rate in such proportion as the Corporation may determine or out of money to be borrowed under the powers of this Act for the purpose.

The SCHEDULES referred to in the foregoing Act. A.D. 1914.

THE FIRST SCHEDULE.

FORM OF MORTGAGE.

By virtue of the Ossett Corporation Act 1914 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Ossett (herein-after referred to as "the Corporation") in consideration of the sum of pounds (herein-after referred to as "the principal sum") paid to the treasurer of the borough by (herein-after referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the principal sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as herein-after provided) at the rate of per centum per annum from the day of one thousand nine hundred and until payment of the principal sum such interest to be paid half-yearly on the day of and the day of in each year And it is hereby agreed that the principal sum shall be repaid at in the said borough [(subject as herein-after provided) on the day of one thousand nine hundred and] [by]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon and mentioned in an endorsement to be made hereon under the hand of the mayor and town clerk of the said borough for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith

A.D. 1914. and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this day of
one thousand nine hundred and .

Received on the day of
one thousand nine hundred and of and from the
within-named mortgagee the sum of pounds
being the consideration money within expressed to be paid by the mortgagee to me and I hereby certify that this mortgage was duly registered in the books of the mayor aldermen and burgesses of the borough of Ossett Folio number .

Town Clerk of the said borough of Ossett.

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named consenting
the within-mentioned time for repayment of the within-mentioned principal sum of is hereby extended
to the day of one thousand
nine hundred and [and the interest to be paid thereon on
and from the day of one thousand
nine hundred and is hereby declared to be at the
rate of per centum per annum].

Dated this day of one thousand
nine hundred and .

FORM OF TRANSFER OF MORTGAGE.

I [the within-named]
[of] in consideration of the
sum of pounds paid
to me by of
(herein-after referred to as "the transferee") do hereby transfer to the transferee [his] executors administrators and assigns [the within-written security] [the mortgage number of the revenues of the mayor aldermen and burgesses of the borough of Ossett bearing date the day of]
and all my right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this day of one thousand
nine hundred and .

THE SECOND SCHEDULE.

PART I.
BOROUGH FUND.

Purpose. 1.	Authority. 2.	Term. 3.	Amount sanctioned. 4.	Amount of Loan raised. 5.	Amount paid into Sinking Fund. 6.	Amount repaid. 7.	Amount in Sinking Fund 31st March 1914. 8.	Net Debt. 9.	Term unex- pired. 10.	Equated Period. 11.
		Years.	£	£	£ s. d.	£	£ s. d.	£ s. d.	Years.	Years.
Town hall land -	Local Government Board Sanction 26th October 1904	30	5,700	5,700	1,217 4 0	—	1,217 4 0	4,482 16 0	21	21
Town hall -	Ditto 1st May 1905	30	8,825	8,825	1,884 12 0	—	1,884 12 0	6,940 8 0	21	
Ditto -	Ditto ditto -	30	3,000	3,000	560 14 8	—	560 14 8	2,439 5 4	22	
Ditto -	Ditto ditto -	30	1,675	1,675	227 14 7	—	227 14 7	1,447 5 5	24	
Ditto furnishing	Ditto ditto -	15	1,500	1,500	521 13 7	—	521 13 7	978 6 5	9	
Ditto furniture and fittings.	Ditto 5th February 1913	10	376	376	33 15 8	—	33 15 8	342 4 4	9	
Ditto buildings -	Ditto ditto -	25	942	942	26 12 3	—	26 12 3	915 7 9	24	
Ditto paving -	Ditto ditto -	12	246	246	17 17 1	—	17 17 1	228 2 11	11	
			22,264	22,264	4,490 3 10	—	4,490 3 10	17,773 16 2		

A.D. 1914.

[Ch. clix.]

Ossett Corporation Act, 1914.

[4 & 5 GEO. 5.]

PART II.

GENERAL DISTRICT FUND.

Purpose. 1.	Authority. 2.	Term. 3.	Amount of Loan sanctioned. 4.	Amount of Loan raised. 5.	Amount paid into Sinking Fund. 6.	Amount repaid. 7.	Amount in Sinking Fund 31st March 1914. 8.	Net Debt. 9.	Term unex- pired. 10.	Equated Period. 11.
		Years.	£	£	£ s. d.	£ s. d.	£ s. d.	£ s. d.	Years.	Years.
Sewage undertaking	Local Government Board Sanction 12th April 1876	60	19,000	19,000	7,920 18 5	6,450 0 0	1,470 18 5	11,079 1 7	22	26
Ditto	Ditto	60	5,500	5,500	2,271 13 7	1,667 16 10	603 16 9	3,228 6 5	22	
Ditto	Ditto	50	1,000	1,000	254 6 0	30 0 0	224 6 0	745 14 0	29	
Ditto	Ditto	50	3,150	3,150	477 3 1	400 0 0	77 3 1	2,672 16 11	36	
Ditto	Ditto	30	1,360	1,360	290 8 4	250 0 0	40 8 4	1,069 11 8	21	
Ditto	Ditto	30	300	300	33 10 9	30 0 0	3 10 9	266 9 3	25	
Ditto	Ditto	30	7,943	7,943	698 9 10	500 0 0	198 9 10	7,244 10 2	26	
Ditto	Ditto	30	530	530	34 8 8	30 0 0	4 8 8	495 11 4	27	
Ditto	Ditto	15	588	588	31 12 4	20 0 0	11 12 4	556 7 8	14	
Ditto	Ditto	15	455	455	—	—	—	455 0 0	15	
Street improvements:										
Wesley Street	Ditto	50	2,100	2,100	467 11 11	50 0 0	417 11 11	1,632 8 1	31	
Ditto	Ditto	50	1,693	1,693	351 7 10	50 0 0	301 7 10	1,341 12 2	32	
Teall Street	Ditto	35	250	250	47 8 6	40 0 0	7 8 6	202 11 6	25	
Land for street improvement:										
Tramways	Ditto	60	196	196	6 7 10	—	6 7 10	189 12 2	55	
Ditto tramways	Ditto	20	144	144	28 9 0	25 0 0	3 9 0	115 11 0	15	
Dale Street and South Parade.	Ditto	20	332	332	12 7 1	10 0 0	2 7 1	319 12 11	19	
Public offices land	Ditto	49	100	100	50 14 6	50 0 0	0 14 6	49 5 6	16	
Destructor land	Ditto	60	500	500	35 3 3	35 0 0	0 3 3	464 16 9	50	
Mortuary	Ditto	30	80	80	17 2 0	—	17 2 0	62 18 0	21	
Healey Bridge	Ditto	33	1,000	1,000	184 8 6	175 0 0	9 8 6	815 11 6	24	
Destructor road	Ditto	15	500	500	26 17 8	25 0 0	1 17 8	473 2 4	14	
			part of 600Z.							
Shed	Ditto	30	130	130	27 15 6	25 0 0	2 15 6	102 4 6	21	
Fire station and storekeeper's house.	Ditto	30	590	590	12 8 0	—	12 8 0	577 12 0	29	

A.D. 1914.

PART III.

WATERWORKS.

Purpose. 1.	Authority. 2.	Term. 3.	Amount sanctioned. 4.	Amount of Loan raised. 5.	Amount paid into Sinking Fund. 6.	Amount repaid. 7.	Amount in Sinking Fund 31st March 1914. 8.	Net Debt. 9.	Term unex- pired. 10.	Equated Period. 11.
		Years.	£	£	£ s. d.	£	£ s. d.	£ s. d.	Years.	Years.
Water undertaking -	Sanction 12th April 1876 and 16th December 1878.	38	20,500	20,500	14,957 2 6	12,400	2,557 2 6	5,542 17 6	6	8
Ditto -	Sanction Local Government Board 10th October 1898.	27	1,530	1,530	699 0 6	580	119 0 6	830 19 6	12	
Ditto -	Local Government Act 1888 and Sanction Local Government Board 24th July 1902.	24	250	250	93 0 4	—	93 0 4	156 19 8	13	
Ditto -	Sanction Local Government Board 24th July 1902	30	350	350	74 15 0	—	74 15 0	275 5 0	21	
Ditto -	Ditto 2nd August 1912	15	342	342	18 7 9	—	18 7 9	323 12 3	14	
			22,972	22,972	15,842 6 1	12,980	2,862 6 1	7,129 13 11		

A.D. 1914.

PART IV.
GASWORKS.

Purpose. 1.	Authority. 2.	Term. 3.	Amount sanctioned. 4.	Amount of Loan raised. 5.	Amount paid into Sinking Fund. 6.	Amount repaid. 7.	Amount in Sinking Fund 31st March 1914. 8.	Net Debt. 9.	Term unex- pired. 10.	Equated Period. 11.
		Years.	£	£	£ s. d.	£ s. d.	£ s. d.	£ s. d.	Years.	Years.
Purchase of under- taking.	Ossett Gas Act 1900	45	Sum necessary.	104,500	17,200 6 3	17,200 6 3	—	87,299 13 9	33	34
Purchase of under- taking and exten- sions.	Ditto	45	Sum necessary and part of 25,000l.	8,000	1,224 9 5	1,224 9 5	—	6,775 10 7	33	
Extensions	Ditto	45	Part of 25,000l.	3,000	414 7 10	414 7 10	—	2,585 12 2	34	
Ditto	Ditto	45	Ditto	6,000	741 16 0	741 16 0	—	5,258 4 0	35	
Ditto	Ditto	45	Ditto	6,000	657 7 7	657 7 7	—	5,342 12 5	36	
Ditto	Ditto	45	Ditto	3,000	287 14 0	287 14 0	—	2,712 6 0	37	
Ditto	Ditto	45	Ditto	1,000	45 2 3	44 1 6	1 0 9	954 17 9	41	
				131,500	20,571 3 4	20,570 2 7	1 0 9	110,928 16 8		

A.D. 1914.

[Ch. clix.]

Ossett Corporation Act, 1914.

[4 & 5 GEO. 5.]

PART V.
EDUCATION.

Purpose. 1.	Authority. 2.	Term. 3.	Amount sanctioned. 4.	Amount of Loan raised. 5.	Amount paid into Sinking Fund. 6.	Amount repaid. 7.	Amount in Sinking Fund 31st March 1914. 8.	Net Debt. 9.	Term unex- pired. 10.	Equated Period, 11.
		Years.	£	£	£ s. d.	£	£ s. d.	£ s. d.	Years.	Years.
Southdale Site -	Local Government Board Sanction 20th February 1906	60	1,240	1,240	67 12 3	40	27 12 3	1,172 7 9	52	42
School buildings -	Ditto	30	1,600	1,600	257 13 6	250	7 13 6	1,342 6 6	23	
Ditto ditto -	Ditto	27	362	362	37 4 0	—	37 4 0	324 16 0	23	
Flushdyke land -	Ditto	60	300	300	7 13 9	—	7 13 9	292 6 3	56	
Erection -	Ditto	50	3,650	3,650	100 0 4	50	50 0 4	3,549 19 8	47	
			7,152	7,152	470 3 10	340	130 3 10	6,681 16 2		6
Furniture -	Ditto	10	203	203	17 14 2	—	17 14 2	185 5 10	9	
Southdale furniture -	Ditto	10	591	591	273 18 2	250	23 18 2	317 1 10	5	
Ditto Road -	Ditto	5	68	68	12 16 2	—	12 16 2	55 3 10	4	
			862	862	304 8 6	250	54 8 6	557 11 6		
	Grand Total - - -		8,014	8,014	774 12 4	590	184 12 4	7,239 7 8		

Printed by EYRE and SPORRISWOODE, LTD.,
FOR
FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad of
T. FISHER UNWIN, LONDON, W.C.